

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

14. KARINA MYERS V. MICHAEL MYERS

25FL0727

Petitioner filed a Request for Order (RFO) on April 29, 2026, seeking child and spousal support as well as Family Code section 2030 attorney's fees. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served on April 30, 2026.

Respondent filed a Responsive Declaration on June 9, 2026 along with an Income and Expense Declaration. Both were served on June 9th.

Petitioner is seeking guideline child support and temporary spousal support. Petitioner is also seeking \$7,500 in Family Code section 2030 attorney's fees. Respondent agrees to the request for guideline child support. However, Respondent opposes the request for guideline temporary spousal support as well as for attorney's fees. Respondent has included a proposed X-Spouse in his declaration.

The court has read and considered the filings as outlined above. The court adopts the proposed X-Spouse calculation contained in Respondent's Exhibit A.

The court finds guideline child support to be \$179 per month. The court orders Respondent to pay Petitioner \$179 per month as and for guideline child support. This order is effective May 1, 2026, with payments due on the first of each month until further order of the court or termination by operation of law.

The court further finds that Respondent has the opportunity to routinely earn overtime. While that may be currently reduced, the opportunity is still available. Therefore, the court is ordering Petitioner to prepare an overtime table to be included with the Findings and Orders After Hearing. Parties are directed to true-up any overtime earned by Respondent on a quarterly basis.

The court finds this order results in an arrears balance of \$358 dollars. The court orders Respondent to pay Petitioner \$358 as and for arrears on or before July 15, 2026.

As to the request for guideline temporary spousal support, the court finds guideline temporary spousal support would be \$53 per the Alameda Formula as set forth in Exhibit A. However, the court is not ordering Respondent to pay Petitioner temporary guideline spousal support. The court finds Petitioner's income is sufficient to meet her needs. See Family Code § 3600. Petitioner works full-time and earns sufficient income to meet her needs. Additionally, Petitioner has been and continues to receive adoption assistance for the minor. Therefore, the court denies the request for temporary guideline spousal support.

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Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." *In re Marriage of Keech*, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

The court finds there is a disparity in income between the parties. However, the court is unable to find Respondent has the ability to pay for both his counsel as well as Petitioner's counsel given the reduction in his overtime, as well as his expenses. As such, the court denies the request for Family Code section 2030 attorney's fees, without prejudice.

The court notes Respondent has asserted in his declaration that there were no attempts to meet and confer prior to Petitioner filing this motion. The court reminds parties of their obligations to promote settlement of litigation and, where possible, to reduce the cost of litigation through mutual cooperation of clients and their counsel.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT FINDS GUIDELINE CHILD SUPPORT TO BE \$179 PER MONTH. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$179 PER MONTH AS AND FOR GUIDELINE CHILD SUPPORT. THIS ORDER IS EFFECTIVE MAY 1, 2026, WITH PAYMENTS DUE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$358 DOLLARS. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$358 AS AND FOR ARREARS ON OR BEFORE JULY 15, 2026.

THE COURT FURTHER FINDS THAT RESPONDENT HAS THE OPPORTUNITY TO ROUTINELY EARN OVERTIME. THE COURT IS ORDERING PETITIONER TO PREPARE AN OVERTIME TABLE TO BE INCLUDED WITH THE FINDINGS AND ORDERS AFTER

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HEARING. PARTIES ARE DIRECTED TO TRUE-UP ANY OVERTIME EARNED BY RESPONDENT ON A QUARTERLY BASIS.

AS TO THE REQUEST FOR GUIDELINE TEMPORARY SPOUSAL SUPPORT, THE COURT FINDS GUIDELINE TEMPORARY SPOUSAL SUPPORT WOULD BE \$53 PER THE ALAMEDA FORMULA AS SET FORTH IN EXHIBIT A. HOWEVER, THE COURT IS NOT ORDERING RESPONDENT TO PAY PETITIONER TEMPORARY GUIDELINE SPOUSAL SUPPORT. THE COURT FINDS PETITIONER'S INCOME IS SUFFICIENT TO MEET HER NEEDS.

THE COURT FINDS THERE IS A DISPARITY IN INCOME BETWEEN THE PARTIES. HOWEVER, THE COURT IS UNABLE TO FIND RESPONDENT HAS THE ABILITY TO PAY FOR BOTH HIS COUNSEL AS WELL AS PETITIONER'S COUNSEL GIVEN THE REDUCTION IN HIS OVERTIME, AS WELL AS HIS EXPENSES. AS SUCH, THE COURT DENIES THE REQUEST FOR FAMILY CODE SECTION 2030 ATTORNEY'S FEES, WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.